

## **Smt. Babita Bai vs Radheshyam Sharma on 17 July, 2018**

THE HIGH COURT OF MADHYA PRADESH  
F.A.No.214/2016

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Gwalior, 17.7.2018

Shri Anil Kumar Sharma, learned counsel for the  
appellant.

Shri Sanjay Kumar Mishra, learned counsel for the  
respondent.

The matter is posted for consideration of I.A.No.2416/2018 and I.A.No.2417/2018.

Vide I.A.No.2416/2018, the appellant seeks maintenance pendente lite.

It is submitted that appellant has no independent source of income and she is dependent on her parents, whereas the respondent has a definite source of income through agriculture and by operating a motor vehicle.

Though in a reply filed by the respondent, it is urged that the appellant has a definite source of income as she is living with her parents, however, there is no material on record to establish this contention. It is faintly submitted that since the marriage has been THE HIGH COURT OF MADHYA PRADESH held to be nullity, the respondent cannot be burdened with the maintenance of the appellant during pendency of the appeal. We have however not impressed with submission as it has not bearing on an application under section 24 of the Hindu Marriage Act, 1955.

After considering the rival submissions and the fact that the appellant has no independent source of income for her livelihood and that the respondent has a definite source of income through agriculture, we are inclined to allow the application for maintenance during pendency of present appeal and direct the respondent to pay appellant Rs.5,000/- (Rupees Five Thousand) per month on or before 10 th day of each Gregorian (English) month through her bank account from the date of application i.e. 8.5.2018. The appellant shall disclose the account number to the respondent.

I.A. No.2416/2018 stands disposed of.

THE HIGH COURT OF MADHYA PRADESH As regard to I.A.No.2417/2018, whereby the appellant prays for direction that respondent be prohibited from solemnizing second marriage. It is evident from the reply filed by the respondent that he has not solemnized the second marriage. Even otherwise section 15 of the Hindu Marriage Act stipulates.

In view whereof, I.A.No.2417/2018 is disposed of with a direction that the respondent shall abide by stipulations contained under Section 15 of the Hindu Marriage Act.

I.A. stands disposed of.

(Sanjay Yadav)  
Judge

(S.K. Awasthi)  
Judge

Pawar/-

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